

Court No. - 44

Case :- CRIMINAL MISC. WRIT PETITION No. - 16864 of 2019

Petitioner :- Ramanand Yadav Alias Rama Yadav

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Tarak Nath Singh, Kamleshwar Singh

Counsel for Respondent :- G.A.

Hon'ble J.J. Munir,J.

Hon'ble Anil Kumar-IX,J.

Learned counsel for the petitioner will implead the concerned Electricity Distribution Corporation within 24 hours and serve notice upon the learned counsel appearing for that Corporation by tomorrow.

Lay this matter as fresh day after tomorrow i.e. **20.06.2019.**

Order Date :- 18.6.2019

Rahul.

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Hon'ble Anil Kumar-IX,J.

Shri Salim Khan, Advocate holding brief of Shri Mahboob Ahmad, learned counsel appearing on behalf of respondent no. 4 is granted 48 hours time to seek instructions in the matter as to whether the checking report in accordance with Electricity Supply Code has been drawn and served upon the petitioner particularly by registered post within 24 hours.

The instructions that would be placed before the Court on an appropriate affidavit must show that the checking report regarding alleged theft was sent by registered post, and, the document to show that it was so sent.

Put up on Monday i.e. 24.06.2019.

Order Date :- 20.6.2019

Deepak

Petitioner :- Ramanand Yadav Alias Rama Yadav

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Tarak Nath Singh, Kamleshwar Singh

Counsel for Respondent :- G.A.

Hon'ble Naheed Ara Moonis, J.

Hon'ble Jayant Banerji, J.

Heard learned counsel for the petitioner and Shri Mahboob Ahmad, learned counsel appearing for the respondent no.5.

This petition has been filed by the petitioner invoking extra ordinary jurisdiction of this Court with a prayer to quash the F.I.R. of case crime no. 0054 of 2019, under Section 135 of the Electricity Act, 2003, Police Station Karnda, District Ghazipur.

In compliance of the order dated 20.6.2019, learned counsel Shri Mahboob Ahmad appearing on behalf of the newly impleaded respondent No.5 has filed an affidavit of compliance.

It is submitted by the learned counsel that the requirement of checking report with regard to assessment process is separate as civil liability in view of section 126 of the electricity Act and has nothing to do with lodging of the first information report on account of theft of electricity under Section 135 of the Electricity Act. He has further submitted that the offence is compoundable in nature hence appropriate direction may be issued to the petitioner to approach the authority concerned for compounding of the offence.

From the perusal of the F.I.R. it appears that on the basis of the allegations made therein, prima facie, cognizable offence is made out. There is no ground for interfering in the F.I.R. Therefore, the prayer for quashing the impugned F.I.R. is refused.

However, considering the submission made by the learned counsel for the petitioner that the above mentioned offence is compoundable and the petitioner is ready to deposit the compounded amount, it is directed that in case the petitioner moves an application before the authority concerned within one week from today for compounding the offence, the authority concerned of the Electricity Department shall be summoned by the court concerned within two weeks thereafter for the purpose of submitting the compounding report.

The authority concerned shall submit the compounding report

within 15 days thereafter. Upon receipt of the compounding report, the authority concerned shall pass appropriate order within a period of three weeks. The petitioner shall deposit the compounded amount within three weeks thereafter.

In case the petitioner deposits the compounded amount in the manner as mentioned above, no coercive steps shall be taken against the petitioner in the aforesaid case for a period of three months from today. In default of moving the application as mentioned above and to deposit the amount as directed above, it shall be open to the I.O. to make arrest of the petitioner.

With the above direction this petition is finally disposed of.

Order Date :- 24.6.2019
sfa/

Court No. - 46

Case :- CRIMINAL MISC. WRIT PETITION No. - 16864 of 2019

Petitioner :- Ramanand Yadav Alias Rama Yadav

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Tarak Nath Singh, Kamleshwar Singh

Counsel for Respondent :- G.A.

Hon'ble Naheed Ara Moonis, J.

Hon'ble Jayant Banerji, J.

When the case is taken up in the revised call, none appeared on behalf of the petitioner to address the Court.

In view of the resolution of the Bar requesting the Court not to pass any adverse order, the case is passed over.

Let the case be listed again when the Bench is next formed.

Order Date :- 20.12.2019

Ishrat